

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sarah Milardo	Team: Team # 2	CCRB Case #: 201305200	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/07/2013 2:35 PM	Location of Incident: § 87(2)(b)	Precinct: 70	18 Mo. SOL 12/7/2014	EO SOL 12/7/2014	
Date/Time CV Reported Fri, 06/07/2013 2:40 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/12/2013 12:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jason Jones	06496	940316	NARCBBS
2. POM David Marconi	02135	940420	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Jason Jones	Abuse: Det. Jason Jones stopped § 87(2)(b)	§ 87(2)(b)
B.POM David Marconi	Abuse: PO David Marconi stopped § 87(2)(b)	§ 87(2)(b)
C.DT3 Jason Jones	Abuse: Det. Jason Jones threatened to arrest § 87(2)(b)	§ 87(2)(b)
D.DT3 Jason Jones	Discourtesy: Det. Jason Jones spoke discourteously to § 87(2)(b)	§ 87(2)(b)
E.DT3 Jason Jones	Abuse: Det. Jason Jones threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
F.DT3 Jason Jones	Abuse: Det. Jason Jones frisked § 87(2)(b)	§ 87(2)(b)
G.DT3 Jason Jones	Abuse: Det. Jason Jones searched § 87(2)(b)	§ 87(2)(b)
H.POM David Marconi	Abuse: PO David Marconi refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed a complaint over the phone with the Internal Affairs Bureau on June 7, 2013 and it was received at the CCRB on June 12, 2013. On June 7, 2013, at approximately 2:35 p.m., § 87(2)(b) was approached by officers in the hallway of § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A – Abuse of Authority: Det. Jason Jones stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO David Marconi stopped § 87(2)(b)

Allegation F – Abuse of Authority: Det. Jason Jones frisked § 87(2)(b)

§ 87(2)(g)

Allegation C – Abuse of Authority: Det. Jason Jones threatened to arrest § 87(2)(b)

Allegation D – Discourtesy: Det. Jason Jones spoke discourteously to § 87(2)(b)

Allegation E – Abuse of Authority: Det. Jason Jones threatened § 87(2)(b) with the use of force.

Allegation G – Abuse of Authority: Det. Jason Jones searched § 87(2)(b)

Allegation H – Abuse of Authority: PO David Marconi refused to provide his shield number to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) rejected mediation.

Results of Investigation

Video Footage (encl. G1-G2)

Channel 3: Facing the entrance

14:09:15, Det. Jones and PO Marconi follow a man into the building and the video footage ends.

Channel 4 (1): Inside the hallway

14:29:49: Det. Jones gestures toward § 87(2)(b) who is holding a black grocery bag. As § 87(2)(b) rounds the corner, Det. Jones reaches towards § 87(2)(b) right arm, making contact and PO Marconi touches his left arm. They appear to speak and § 87(2)(b) points towards the door.

14:30:30: § 87(2)(b) reaches into his left pants pocket and provides PO Marconi with an object. All along Det. Jones continues with animated hand gestures.

14:30:58: § 87(2)(b) pulls up his pants.

14:31:03: § 87(2)(b) raises his right hand and moves it towards Det. Jones as Det. Jones steps back. It is unclear if they make contact.

14:31:30: § 87(2)(b) holds something in his hand, lifts it up, and gently shakes it while

speaking.

14:31:40: Det. Jones and § 87(2)(b) speak while § 87(2)(b) points deeper into the building. PO Marconi's hand gestures become more animated.

14:31:07: § 87(2)(b) removes a second object from his pocket, fiddles with it and provides it to PO Marconi, who hands the object back to § 87(2)(b) at 14:32:35. § 87(2)(b) puts it back in his pocket with his left hand while gesturing towards the door with his right.

14:33:15: Det. Jones gestures more energetically towards § 87(2)(b) while stepping towards him. They do not make contact. All the while § 87(2)(b) fiddles with the grocery bag.

14:34:25: Det. Jones steps towards § 87(2)(b) and reaches his right hand down by § 87(2)(b) left thigh. It is unclear if or where he touches as PO Marconi stands between § 87(2)(b) and the camera.

14:33:33: Det. Jones leans to § 87(2)(b) right side and looks towards his thigh by leaning his face in closer.

14:34:44: Det. Jones leans again towards § 87(2)(b) left side with his body and reaches for his thigh with his hands. It is unclear exactly where his hands are. § 87(2)(b) turns to face the wall while the officer still looks and reaches towards his pants. Det. Jones nudges § 87(2)(b) into the wall and he braces himself with his left hand. Det. Jones continues to move his arms around, but it is unclear where as PO Marconi stands between § 87(2)(b) and the camera. Det. Jones feels around § 87(2)(b) pants for 44 seconds before § 87(2)(b) turns his back towards the wall.

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *a black man with black hair and brown eyes, stands 5'6" tall and weighs 165 pounds. He was § 87(2)(b) old at the time of the incident. He refused to provide his employment information.*

CCRB Statement

§ 87(2)(b) provided a statement to IAB on June 7, 2013 at 2:40 p.m. (encl. D4), a phone statement to the CCRB on June 13, 2013 (encl. D5) and an in-person statement at the CCRB on June 18, 2013 (encl. D8-D10). § 87(2)(g)

On June 7, 2013, at approximately 2:35 p.m., § 87(2)(b) friend dropped him off at the apartment building in which he had been living for the past two years, at § 87(2)(b) in Brooklyn. The two had been shopping and § 87(2)(b) was going to briefly charge his phone, check his messages, then return to his friend's car to pick up his daughter from the bus stop. It was a rainy day and § 87(2)(b) was wearing jeans, an unzipped hooded sweatshirt, and sneakers. § 87(2)(b) did not consume any drugs or alcohol. § 87(2)(b) entered the building via the only entry and through the use of a key fob, which was broken and therefore, tightly wrapped in a paper pouch. From the outside, one could see into the front hallway through a glass panel imbedded in the door.

Immediately upon entering the building, § 87(2)(b) saw an individual, later identified as Det. Jason Jones, described as a 37 to 38-year-old black man with light complexion, standing 5'6" tall with a chubby build, thick facial hair, and wearing a red hoodie and dark shorts, mumbling and leaning against a wall with his arms crossed. § 87(2)(b) and Det. Jones made eye contact as § 87(2)(b) turned the corner towards the elevators. Det. Jones walked forward and asked § 87(2)(b) if he lived in the building. § 87(2)(b) yet to know he was an officer, asked what he meant because he just used the key fob to enter. A second individual, identified via investigation as PO David Marconi, described as a 37 to 38-year-old white man, standing 5'7" to 5'8" tall with a stocky build, wearing a gray hooded sweatshirt and blue jeans came from around the corner and he and Det. Jones surrounded § 87(2)(b).

Det. Jones asked § 87(2)(b) for identification and he asked what for. Det. Jones explained that they wanted to know if he lived in the building. § 87(2)(b) asked who they were and PO Marconi stated that they were police. Det. Jones asked again if § 87(2)(b) lived in the building and § 87(2)(b) repeated that he had a key and lived there. PO Marconi responded that having a key did not confirm that he lived in the building. § 87(2)(b) pointed to the super's door and told the officers to confirm with the super that he lived there. The officers refused and § 87(2)(b) provided his identification, which had a different address, to PO Marconi. Det. Jones said they could arrest § 87(2)(b) for trespassing because of the differing addresses. § 87(2)(b) argued that theoretically he could have had multiple houses. He told the officers that he lived upstairs and when Det. Jones asked which apartment, § 87(2)(b) said that it did not matter. § 87(2)(b) and Det. Jones argued for a few seconds when Det. Jones said, "Oh, you're going to be a dickhead?" and asked for § 87(2)(b) name. § 87(2)(b) told him to check his identification.

Det. Jones repeated that § 87(2)(b) was a "dickhead" and that he could be arrested for trespassing. § 87(2)(b) repeated to confirm with the super and Det. Jones grabbed him by his arms to push him face forward into the wall. § 87(2)(b) raised his arms to prevent his face from striking the wall and Det. Jones applied pressure to his back and told him to stop resisting. § 87(2)(b) explained that he was protecting his face and Det. Jones said, "If I wanted to hit your fucking face against the wall, that's what I'd do." § 87(2)(b) told Det. Jones that he was going to file a complaint and Det. Jones said that he did not care, while offering his name.

During his initial intake call, § 87(2)(b) said that he was searched, but he did not detail the extent. In his CCRB statement, § 87(2)(b) explained that Det. Jones frisked him around his chest, waist, down his side pockets, over his back pockets and down both legs. Det. Jones pulled both of § 87(2)(b) pants legs up so his legs were exposed below his knees. § 87(2)(b) did not have anything around his ankles or in his pockets aside from his wallet and keys. Det. Jones placed his hands into both of § 87(2)(b) front pants pockets, but he did not remove anything. § 87(2)(b) asked to see both officers' badges and Det. Jones produced his gold shield. (§ 87(2)(b) did not state in his initial call that he asked for PO Marconi's name or shield and in his phone statement, he did not state that PO Marconi refused to provide it.) However, in his CCRB statement he stated that PO Marconi did not verbally or physically produce his badge information upon its request. The officers released § 87(2)(b) and he went up to his apartment, § 87(2)(b) and filed a complaint. The interaction lasted approximately ten minutes.

NYPD Statements:

Subject Officer: DET. JASON JONES

- *Det. Jones, a black man with black hair and brown eyes, stands 5'10" tall and weighs 260 pounds. He was § 87(2)(b) old at the time of the incident.*
- *Det. Jones worked from 9:27 a.m. to 6 p.m. and was assigned to Team 1 in Queens Narcotics with PO David Marconi. He was dressed in plainclothes and assigned to an unmarked motor vehicle.*

Memo Book (encl. E1-E3)

2:35 p.m., one male stopped in the vicinity of § 87(2)(b) § 87(2)(b). Stated that he lives there, but ID says he lives at § 87(2)(b). Male named § 87(2)(b). Client ID number § 87(2)(b) said he does not have to show his ID because he lives there. No house key.

Stop, Question, and Frisk Report (encl. E6-E8)

The Stop, Question, and Frisk report completed by Det. Jones noted that § 87(2)(b) was stopped inside the lobby of § 87(2)(b) § 87(2)(b) under the suspicion of trespassing and that the stop lasted for five minutes. Officers were identified verbally and by shield and physical force was used to place § 87(2)(b) against the wall. The only reason for the frisk was noted to be a refusal to comply with officer's directions, leading to reasonable fear for safety. It was documented that § 87(2)(b) was not searched. Additional circumstances and factors were reported as the area having a high incidence of reported offense of type under investigation and evasive, false, or inconsistent response to officer's questions.

CCRB Statement (encl. E9-E11)

Det. Jones was interviewed at the CCRB on September 24, 2013. § 87(2)(g)

On June 7, 2013, at approximately 2:30 p.m., Det. Jones and PO Marconi entered § 87(2)(b) § 87(2)(b) in Manhattan to patrol the building's hallways. Det. Jones conducted numerous drug-related search warrants in this building and he had a rapport with the landlord who, in the past, had asked him to periodically stop by the building to deter crime. On this day, the landlord let the officers into the building through the use of a key fob and the locks appeared to work properly. Det. Jones and PO Marconi stood in a hallway by the entrance when they noticed an individual, later identified as § 87(2)(b) looking through the windows and door of the main entrance. He did not do anything else. § 87(2)(b) was alone and appeared hesitant as he peered in for approximately one minute before entering. Det. Jones was unsure how § 87(2)(b) entered, but he did not see him swipe a key fob or dial a buzzer system. Based on Det. Jones' knowledge of the location, § 87(2)(b) behavior prior to entering the building raised his suspicions as to why he was there. Det. Jones specified that nothing in particular piqued his interest, but the landlord asked him to make a presence and the location was drug prone. § 87(2)(b) was still alone and did not appear to have anything on his person or in his hands. Det. Jones had never seen § 87(2)(b) before.

As § 87(2)(b) walked down the hallway, Det. Jones asked him if he lived in the building. PO Marconi was by Det. Jones' side, but he did not say anything. § 87(2)(b) responded, "Why? Who the fuck are you?" Both officers had their shields out and around their necks when § 87(2)(b)

§ 87(2)(b) asked if they were police. Det. Jones said that they were police and that he was Det. Jones. When asked if he heard PO Marconi verbally provide his information, Det. Jones said that § 87(2)(b) did not ask PO Marconi for this information and said, “He only asked...” Det. Jones then stopped himself and said that § 87(2)(b) did not ask either officer for their name or shield number and that Det. Jones just volunteered this information. When asked a second time if § 87(2)(b) asked either officer for their name and shield number, Det. Jones said no.

§ 87(2)(b) asked why the officers wanted to know if he lived there. Det. Jones asked again if § 87(2)(b) lived there and asked him to produce identification. § 87(2)(b) said that he did not have to show identification or say where he lived. Approximately one minute into the interaction, Det. Jones decided to frisk § 87(2)(b) because he was agitated, cursing, and repeatedly reaching for his right pocket. (At this point in the CCRB interview, Det. Jones’ representative, Robert Alongi, stated, “And you were in danger, you felt in danger” and Det. Jones affirmatively hummed, “mm hmm.”) Det. Jones grabbed the hand that § 87(2)(b) used to reach at his pocket and told him to relax. Det. Jones had § 87(2)(b) face the wall, with his hands against it, so that he could frisk the pocket that § 87(2)(b) had been reaching for. § 87(2)(b) used his arms and shoulders to push Det. Jones away twice, while telling him not to touch him. Det. Jones said that he was frisking § 87(2)(b) for the officers’ and for § 87(2)(b) safety. He did not say, “If I wanted to hit your face against the wall, that’s what I would do.” He did not make any threats of force.

Det. Jones frisked around § 87(2)(b) waist, his two front pants pockets and the two back pants pockets. A pen and a lighter were identified strictly by touching the outside of the left pocket and a wallet was identified strictly by touching the right pocket. Det. Jones did not feel any keys, which further supported that § 87(2)(b) did not live in the building. § 87(2)(b) acknowledged that he did not have house keys and told Det. Jones not to worry about it after he asked how he was planning to get into his apartment. Det. Jones did not put his hands into any of § 87(2)(b) pockets. There was nothing suspicious about § 87(2)(b) ankles and Det. Jones never felt around his ankles or lifted his pants.

Knowing now that § 87(2)(b) had a wallet, Det. Jones ordered him to remove it so that he could see his identification. § 87(2)(b) complied and no other items were removed. The identification revealed that § 87(2)(b) address was § 87(2)(b) and Det. Jones accused § 87(2)(b) of not living at § 87(2)(b). § 87(2)(b) said he did and that theoretically he could have multiple homes. Det. Jones said § 87(2)(b) never asked Det. Jones to confirm his residency with a landlord or super because if a landlord or super could confirm that information then § 87(2)(b) would have just provided an apartment number. Det. Jones asked § 87(2)(b) what floor he lived on. § 87(2)(b) asked why he had to tell him and explained that he entered the building by using a key. He displayed a key, which he removed from his wallet. Det. Jones continued to doubt § 87(2)(b) because he produced a key instead of a key fob. Det. Jones then stated that he watched § 87(2)(b) enter and that if he used a key, he would have seen § 87(2)(b) put the key back in his wallet then put his wallet back in his pants. § 87(2)(b) did not produce a key fob or anything wrapped in paper. § 87(2)(b) did not provide any other information about what he was doing in the building.

When asked if Det. Jones ever referred to § 87(2)(b) as a “dickhead,” Det. Jones denied doing so while lightly chuckling. When asked if he used any profanities, Det. Jones paused very briefly and said, “Uh no, not that I can remember.” § 87(2)(b) however, used profanities throughout the incident. Det. Jones released § 87(2)(b) without issuing him a summons or

arresting him, stating that it was not illegal to be in a building and that he could not determine that § 87(2)(b) did not live there. Det. Jones took a picture of § 87(2)(b) identification and used this to later complete the stop, question, and frisk report.

The stop, question, and frisk report completed by Det. Jones was reviewed. He confirmed that there were no other notable reasons for the stop aside from § 87(2)(b) looking into the lobby and that physical force was used to brace him against a wall. Det. Jones confirmed that there were no other notable reasons to frisk § 87(2)(b) other than him refusing to comply with directions. For the “additional circumstances” portion, Det. Jones explained § 87(2)(b) evasiveness was him answering “why” when Det. Jones asked if he lived in the building and saying, “I don’t have to show you nothing” when he was asked for identification.

Video footage from the interior surveillance camera was also reviewed. At 14:34:25 Det. Jones described that he bent to § 87(2)(b) right while frisking the side of his pants, put his hand on his waistband, and then bent to the left again. When asked if he was frisking him while he was not facing the wall, Det. Jones said no, that he was just feeling the side of the pocket. § 87(2)(b) turned to face the wall at 14:34:48 and was seen pushing off. Again, Det. Jones felt at the left side, then right side, then left side again. The camera does not show whether he placed his hands in § 87(2)(b) pockets. Det. Jones explained that he was not searching the pockets when he spent time going back and forth, but was doing a systematic frisk routine by first focusing on the initial threat, the pocket which § 87(2)(b) reached for, then focusing on the others.

Witness Officer: PO DAVID MARCONI

- PO Marconi, a white man with brown hair and brown eyes, stands 5’10” tall and weighs 250 pounds. He was § 87(2)(b) old at the time of the incident.
- PO Marconi worked from 9:27 a.m. to 6 p.m. and was assigned to narcotics squad with Det. Jason Jones. He was dressed in plainclothes and assigned to unmarked vehicle #§ 87(2)(e), § 87(2)(f).

Memo Book (encl. E12-E14)

2:35 p.m., one male stopped inside § 87(2)(b) § 87(2)(b). Male stated he lived here, but ID stated § 87(2)(b). UF 250 prepared by Det. Jones.

CCRB Statement (encl. E16-E18)

PO Marconi was interviewed at the CCRB on October 15, 2013. § 87(2)(g)

This was PO Marconi’s first day with the narcotics command and he did not know anything about the area or the building. PO Marconi faced away from the building’s entrance as Det. Jones stood across from him, facing the entrance. Det. Jones told PO Marconi that he observed § 87(2)(b) § 87(2)(b) walk past the building multiple times without mentioning anything further about him. PO Marconi initially stated that § 87(2)(b) waited for the buzzer to go off to enter the building then he specified that he did not see § 87(2)(b) enter, but that he heard the buzzer then § 87(2)(b) entered. Det. Jones identified them as officers. § 87(2)(b) said that he lived in the building and Det. Jones asked to see identification. PO Marconi was unsure if it was provided at that moment.

Det. Jones immediately frisked § 87(2)(b) pockets for safety reasons, however, he did not do anything to indicate that he had anything on his person. Det. Jones did not verbalize that he

suspected § 87(2)(b) of being armed. PO Marconi could not remember whether § 87(2)(b) appeared to have anything on his person or in his pockets. Det. Jones went straight for § 87(2)(b) front pants pockets, but PO Marconi could not recall if he frisked him anywhere else or if he focused on one pocket. PO Marconi could not recall if Det. Jones frisked § 87(2)(b) by his ankles or lifted his pants. Det. Jones never put his hands into § 87(2)(b) pockets or ordered § 87(2)(b) to empty them. § 87(2)(b) pushed himself off of the wall, but PO Marconi did not hear Det. Jones make any threats of force or use profanity. Eventually, § 87(2)(b) provided an identification that had an alternate address while arguing that he had rights and that the officers could not ask him questions. § 87(2)(b) displayed a key wrapped in tin foil or pieces of paper and said that it was to his apartment. PO Marconi specified that he believed the object was a key because of the way it was wrapped in the foil, but he never saw the object. § 87(2)(b) asked the officers for their badge numbers and both verbally provided them three times slowly. He did not ask for their names.

Upon viewing the video footage, PO Marconi confirmed that § 87(2)(b) was frisked five minutes into the interaction, as opposed to his initial statement of it being immediate and that there were no other notable actions other than him becoming agitated. PO Marconi maintained that Det. Jones did not put his hands into § 87(2)(b) pockets.

Status of Civil Proceedings (encl. H11)

- § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident as of October 11, 2013, one month after the filing deadline.

Civilians Criminal History (encl. H1-H10)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History (encl. B3)

- § 87(2)(b) has filed the following CCRB complaints:
 - § 87(2)(b)

Subject Officers CCRB History

- Det. Jones has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. B1).
- PO Marconi has been a member of the service for seven years and there are two substantiated CCRB allegations against him (encl. B2).
 - In case 2012010741, frisk and search of a person allegations were substantiated. The NYPD disposition is not yet available.

Conclusion

Allegations Not Pled

§ 87(2)(g)

Identification of Subject Officers

Det. Jones and PO Marconi acknowledged interacting with § 87(2)(b) § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Det. Jason Jones stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO David Marconi stopped § 87(2)(b)

It is undisputed that Det. Jones and PO Marconi stopped § 87(2)(b) immediately upon his entrance into the building. § 87(2)(b) stated that he used his key fob, which was wrapped in a paper pouch, to enter. Det. Jones, who acknowledged that the locks were working properly, stated that § 87(2)(b) peered through the glass door hesitantly for one minute prior to entering the building. He stated that he was unsure how § 87(2)(b) entered, but also stated that he did not use a key fob. Det. Jones acknowledged that there was nothing further suspicious about § 87(2)(b) but that the landlord had previously asked him to monitor the building. PO Marconi stated that he did not see § 87(2)(b) enter and that Det. Jones informed him that an individual was pacing in front of the door prior to entering. PO Marconi acknowledged hearing the buzzer immediately prior to § 87(2)(b) entering.

The Stop, Question, and Frisk report completed by Det. Jones noted that § 87(2)(b) was stopped under the suspicion of trespassing and that other factors included the area having a high incidence of reported offense.

In order to stop a person, an officer must have a reasonable suspicion that the person has committed, is committing, or is about to commit a crime. People v. De Bour, 40 N.Y.2d 210 (1976) (encl. A1-A11). Innocuous behavior alone, even in a high crime area, does not generate a founded or reasonable suspicion that a crime is at hand. People v. Hampton, 200 A.D.2d 466 (1994) (encl. A12-A14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Det. Jason Jones threatened to arrest § 87(2)(b)

Allegation D – Discourtesy: Det. Jason Jones spoke discourteously to § 87(2)(b)

Allegation E – Abuse of Authority: Det. Jason Jones threatened § 87(2)(b) **with the use of force.**

§ 87(2)(b) stated that Det. Jones said he could be arrested for trespassing because the address on his identification was different than the building's. § 87(2)(b) also stated that Det. Jones repeatedly called him an "asshole" and a "dickhead" and threatened to hit his head against the wall. Det. Jones denied that there was indication that § 87(2)(b) could have been arrested, specifying that he could not determine if he lived in the building. He also denied using discourteous language or making any threats of force. PO Marconi also denied that Det. Jones made any threats or used any discourteous language towards § 87(2)(b)

The video revealed an animated interaction between Det. Jones and § 87(2)(b) however, there was no sound.

§ 87(2)(g)

Allegation F – Abuse of Authority: Det. Jason Jones frisked § 87(2)(b)

It is undisputed that Det. Jones frisked § 87(2)(b). Det. Jones stated that approximately one minute into the interaction, he frisked § 87(2)(b) because he was agitated, cursing, and repeatedly reaching for his right pocket. Det. Jones's representative, Robert Alongi, stated, "And you were in danger, you felt in danger" and Det. Jones affirmatively hummed, "mm hmm." Det. Jones initially frisked the pocket that § 87(2)(b) had been reaching for, then around § 87(2)(b) waist, his two front pants pockets and the two back pants pockets. Det. Jones acknowledged that he determined that § 87(2)(b) had a wallet upon frisking him and therefore, confirmed that he had identification. PO Marconi said that § 87(2)(b) did not do anything to indicate that he had anything on his person and Det. Jones did not verbalize that he suspected § 87(2)(b) of being armed.

The video footage revealed that the frisk occurred five minutes into the interaction and after § 87(2)(b) touched his pants three times, the last time being three minutes before he was frisked.

The Stop, Question, and Frisk report completed by Det. Jones was reviewed noting that § 87(2)(b) was frisked because he refused to comply with officers directions, leading to reasonable fear for safety. Additional circumstances and factors were reported as the area having a high incidence of reported offense of type under investigation and evasive, false, or inconsistent response to officer's questions. Det. Jones confirmed that there were no other notable reasons for frisking § 87(2)(b). He explained the "additional circumstances" as § 87(2)(b) evasiveness in answering "why" when Det. Jones asked him if he lived in the building and saying, "I don't have to show you nothing" when he was asked for identification.

A frisk is permitted when the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed. People v. De Bour, 40 N.Y.2d 210 (1976).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Abuse of Authority: Det. Jason Jones searched § 87(2)(b)

In his CCRB statement, § 87(2)(b) alleged that Det. Jones went into his pockets and pulled up his pant legs to reveal around his ankles. Det. Jones and PO Marconi denied that Det. Jones searched § 87(2)(b) in any fashion. Det. Jones stated that he was able to identify a wallet, pen, and a lighter strictly by frisking § 87(2)(b)

The Stop, Question, and Frisk report completed by Det. Jones stated that § 87(2)(b) was not searched and the video footage does not clearly display what happened when Det. Jones frisked § 87(2)(b) left side as he stood sideways towards the camera.

§ 87(2)(g)

Allegation H – Abuse of Authority: PO David Marconi refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) alleged that he asked both officers for their badge numbers. Det. Jones provided his while PO Marconi allegedly did not. Det. Jones stated that § 87(2)(b) asked just him for his name and badge number and PO Marconi stated that he asked both, and that both were provided.

The Stop, Question, and Frisk report noted that both officers were identified verbally and by shield.

§ 87(2)(g)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date